Trade Practices Act 1974

Undertaking to the Australian Competition and Consumer Commission pursuant to section 87B

by

WPP Group plc.

Contents

Background

A. WPP Group plc. (**WPP**) is an international marketing communications services group listed on the stock exchange of London and New York (NASDAQ), operating in 106 countries world-wide, including Australia. WPP acts as a holding company whose operations are carried out by the relevant subsidiaries in each segment of activity, often in competition with one another. The WPP operating subsidiaries relevant to the Transaction are the research companies forming part of the Kantar Group and WPP's joint venture with The Nielsen Company (**Nielsen**), AGB Nielsen Media Research (**AGB Nielsen**).

B. WPP provides a comprehensive range of marketing communications services through its operating companies, including advertising, marketing data services (including media management and marketing research services) insight and consultancy, public relations and public affairs, branding and identity, healthcare and specialist communications, and direct promotion.

C. Taylor Nelson Sofres plc. (**TNS**) is a global insight, information and consultancy group and is listed on the London Stock Exchange. TNS has offices in more than 80 countries across Africa, the Americas, Asia Pacific (including Australia), Europe and the Middle East. TNS provides a full range of market research and information services divided into two main areas: syndicated / continuous marketing research services; and custom marketing research services. TNS' syndicated services arm is operated through TNS Worldpanel and TNS Media. TNS Worldpanel is the group's continuous consumer purchasing business which measures and tracks consumer purchasing behaviour through continuous consumer panels. TNS Media provides strategic media intelligence and audience measurement.

D. TNS does not currently provide Television Audience Measurement (**TAM**) Services (as defined below) in Australia, but is a potential competitor in the provision of TAM services in Australia.

E. WPP proposes to acquire the securities of TNS by way of a public offer (**Transaction**).

F. The Australian Competition & Consumer Commission (**Commission**) has expressed concerns that the Transaction will reduce competition with respect to future competition in the provision of TAM services in Australia.

G. WPP does not agree that the Transaction is likely to substantially lessen competition in the market, including the provision of TAM services in Australia. However, in order to avoid delay and to address the Commission's competition concerns, WPP has offered, without admission, to provide this Undertaking.

H. The European Commission (**EC**) has expressed concerns in relation to the effect of the Transaction on TAM services in the EEA. Without admission, WPP has entered into the EC Commitments.

I. This Undertaking incorporates the EC Commitments with the intention that that these commitments, together with the additional undertakings to the Commission, will address the Commission's concerns with respect to future competition in the provision of TAM services in Australia.

1. Definitions and Interpretation

1.1 Definitions

Act means the *Trade Practices Act 1974* (Cth).

Affiliated Undertakings means in relation to a person, undertakings under the Control of that person and/or by the ultimate parent undertakings of that person.

AGB Nielsen means AGB Nielsen Media Research BV.

AGB Nielsen Australian Business means the business operated by AGB Nielsen which provides TAM Services in Australia and includes AGB Nielsen Media Research Pty Ltd.

AGB Nielsen Business means the business operated by AGB Nielsen which provides TAM Services and includes the AGB Nielsen Australian Business.

AGB Nielsen Shareholding means the shareholding consisting of WPP's fifty percent shareholdings in AGB Nielsen, a joint venture with Nielsen, and all subsidiary companies operated by AGB Nielsen.

Commission means the Australian Competition and Consumer Commission.

Control has the same meaning as in section 50AA of the *Corporations Act 2001* (Cth).

EC means the European Commission.

EC Commitments means the TAM Commitments given to the EC (as provided at Annexure A).

First Divestiture Period has the same meaning as in the EC Commitments.

Monitoring Trustee means one or more nature or legal person(s), independent from the Parties, who is approved by the EC and appointed by WPP, and who has the duty to monitor WPP's compliance with the conditions and obligations attached to the EC Commitments.

Purchaser means the entity approved by the EC as the acquirer of the TNS Divestment Business in accordance with the criteria set out in Section D of Part III of the EC Commitments.

Related Bodies Corporate has the same meaning as in section 50 of the *Corporations Act 2001* (Cth).

Shareholding Closing means the transfer of legal title of WPP's shareholding in the AGB Nielsen Australian Business to Nielsen or to an Affiliated Undertaking of Nielsen.

TAM means television audience measurement.

TAM Commitments means the commitments given by WPP pursuant to Article 6(2), of Council Regulation (EC) No. 139/2004 as amended.

TAM Services means any services to the extent they comprise or relate to the measurement, for the primary purpose of establishing size, and/or composition of audiences for television programming based on viewing activity (in any medium and through any device) by a panel or other sample selected to represent the viewing of the universe from which the panel is selected.

Termination Date means the date 10 years after the date of the adoption of the decision by the EC (23 September 2008).

TNS Divestment Business means the EEA TAM Services business currently owned and operated by TNS as defined in the Schedule to Part III of the EC Commitments.

1.2 Interpretation

In the interpretation of this Undertaking, the following provisions apply unless the context otherwise requires:

(1) A reference to 'this Undertaking' includes all of the provisions of this document.

(2) Headings are inserted for convenience only and do not affect the interpretation of this Undertaking.

(3) A reference in this Undertaking to a business day means, in the context of the EC Commitments a day other than a Saturday or Sunday on which banks are open for business generally in London, United Kingdom, or otherwise Sydney, NSW.

(4) If the day on which any act, matter or thing is to be done under this Undertaking is not a business day, the act, matter or thing must be done on the next business day.

(5) A reference in this Undertaking to any law, legislation or legislative provision includes any statutory modification, amendment or re-enactment, and any subordinate legislation or regulations issued under that legislation or legislative provision.

(6) A reference in this Undertaking to any agreement or document is to that agreement or document as amended, novated, supplemented or replaced.

(7) A reference to a clause, part, schedule or attachment is a reference to a clause, part, schedule or attachment of or to this Undertaking.

(8) An expression importing a natural person includes any company, trust, partnership, joint venture, association, body corporate or governmental agency.

(9) Where a word or phrase is given a defined meaning, another part of speech or other grammatical form in respect of that word or phrase has a corresponding meaning.

(10) A word which denotes the singular also denotes the plural, a word which denotes the plural also denotes the singular, and a reference to any gender also denotes the other genders.

(11) A reference to the word 'include' or 'including' is to be construed without limitation.

(12) A construction that would promote the purpose or object underlying the Undertaking (whether expressly stated or not) shall be preferred to a construction that would not promote that purpose or object.

(13) Material not forming part of this Undertaking may be considered to:

(a) confirm the meaning of a clause is the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the competition concerns intended to be addressed by the Undertaking and the clause in question; or

(b) determine the meaning of the clause when the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the purpose or object underlying the Undertaking, leads to a result that does not promote the purpose or object underlying the Undertaking.

(14) In determining whether consideration should be given to any material in accordance with clause 1.2(13), or in considering any weight to be given to any such material, regard shall be had, in addition to any other relevant matters, to the:

(a) effect that reliance on the ordinary meaning conveyed by the text of the clause would have (taking into account its context in the Undertaking and whether that meaning promotes the purpose or object of the Undertaking); and

(b) the need to ensure that the result of the Undertaking is to address the Commission's competition concerns.

(15) The Commission may authorise the Mergers Review Committee, a member of the Commission or a member of the Commission staff, to exercise a decision making function under this Undertaking on its behalf and that authorisation may be subject to any conditions which the Commission may impose.

(16) In performing its obligations under this Undertaking, WPP will do everything reasonably within its power to ensure that its performance of those obligations is done in a manner which is consistent with promoting the purpose and object of the Undertaking.

2. Commencement and Termination of Undertaking

2.1 Commencement

This Undertaking comes into effect when:

(1) the Undertaking is executed by WPP; and

(2) the Undertaking so executed is accepted by the Commission.

2.2 Termination

This Undertaking terminates on the earlier of:

(1) the Termination Date; or

(2) the date the Commission consents in writing to the withdrawal of this Undertaking in accordance with section 87B of the Act.

3. Undertakings

3.1 EC Commitments

(1) WPP will comply with the EC Commitments.

(2) If WPP divests the TNS Divestment Business, WPP must not prevent or restrict the Purchaser from offering or supplying TAM Services in Australia.

3.2 Further commitments regarding the AGB Nielsen Australian Business

(1) If WPP decides to divest the AGB Nielsen Shareholding under Part II of the EC Commitment, such divestiture must include the AGB Nielsen Australian Business on or before the end of the First Divestiture Period.

(2) WPP will be deemed to have complied with clause 3.2(1) if:

(a) by the end of the First Divestiture Period:

(i) WPP has entered into a final binding sale and purchase agreement in relation to the AGB Nielsen Australian Business with Nielsen; and

(ii) has provided the Commission with written notice of such agreement; and

(b) the Shareholding Closing takes place within three months after the date of the agreement with Nielsen.

(3) If WPP divests the AGB Nielsen Shareholding under Part II of the EC Commitment, which must include the AGB Nielsen Australian Business, WPP must not directly or indirectly acquire, for a period of ten years after the adoption of the decision by the EC:

(a) shares in the capital, or assets, of the AGB Nielsen Australian Business; or

(b) Control over the whole or part of the AGB Nielsen Australian Business.

(4) If WPP does not divest the AGB Nielsen Australian Business pursuant to clause 3.2(1), then WPP must divest the TNS Divestment Business in accordance with Part III of the EC Commitments.

4. Australian TAM Services

(1) Should WPP fulfil its commitment to divest the AGB Nielsen Shareholding to Nielsen as set out in Part II of the EC Commitment, nothing in this Undertaking prevents WPP itself, or with other third parties, from providing TAM Services in Australia subject to clause 3.2(3).

(2) Should WPP not divest the AGB Nielsen Shareholding under Part II of the EC Commitment, and as an alternative, divest the TNS Divestment Business as set out in Part III of the EC Commitment, nothing in this Undertaking prevents WPP from providing TAM Services in Australia itself through the AGB Nielsen Shareholding, or otherwise.

5. Monitoring

WPP shall procure that the Monitoring Trustee provide to the Commission a copy of each report, such report to also report on progress of WPP's compliance with clause 3.1(1) and 3.2 of this Undertaking, and other document to be produced under Part IV, paragraph 31(vi) of the EC Commitments within 2 business days of providing the same material to the EC.

6. Jurisdiction

(1) WPP submits to the jurisdiction of the Federal Court of Australia.

(2) Unless and until notified in writing by WPP to the Commission of the appointment of another person as agent within Australia, WPP irrevocably appoints WPP Holdings (Australia) Pty Limited of Level 14, 338 Pitt St, Sydney, NSW, 2000, Australia as its agent for the purposes of any service of process under this Undertaking.

7. Information

(1) Notwithstanding clause 8, WPP will respond in a timely manner to any queries or requests for information made by the Commission (including a person authorised by the Commission under clause 1.2(15)) about this Undertaking.

(2) The Commission can request information from the Monitoring Trustee directly at any time and the Monitoring Trustee will provide the information so requested directly to the Commission, or as otherwise required by the Commission.

(3) In addition, the Monitoring Trustee can advise the Commission directly on any matter pertaining to the functions of the Monitoring Trustee or to any matter pertinent to compliance by WPP with this Undertaking.

8. Further Information

(1) The Commission may direct WPP in respect of its compliance with this Undertaking to, and WPP will:

(a) furnish information, documents and materials to the Commission in the time and in the form requested by the Commission;

(b) produce information, documents and materials to the Commission within WPP's custody, power or control in the time and in the form requested by the Commission; and/or

(c) upon reasonable notice, attend the Commission at a time and place appointed by the Commission to answer any questions the Commission (its Commissioners, its staff or its agents) may have.

(2) In respect to WPP's compliance with this Undertaking, the Commission may request the Monitoring Trustee to:

(a) furnish information, documents and materials to the Commission in the time and in the form requested by the Commission;

(b) produce information, documents and materials to the Commission within the Monitoring Trustee's custody, power or control in the time and in the form requested by the Commission; and/or

(c) upon reasonable notice, attend the Commission at a time and place appointed by the Commission to answer any questions the Commission (its Commissioners, its staff or its agents) may have.

(3) WPP will use its best endeavours to ensure that the Monitoring Trustee complies with any request from the Commission in accordance with clause 8(2) within 5 business days or such other period as may be agreed between WPP and the Commission.

(4) Information furnished, documents and material produced or information given in response to the Commission's direction under clause 8(1) and 8(2) may be used by the Commission for any purpose consistent with the exercise of its statutory functions and powers.

(5) Any direction made by the Commission under clause 8(1) will be notified to Group Chief Counsel of WPP, in accordance with clause 13.1(2).

(6) The Commission may in its discretion to be exercised in good faith:

(a) advise the Monitoring Trustee of any request made by it under this clause 8; and/or

(b) provide copies to the Monitoring Trustee of any information furnished, documents and material produced or information given to it under this clause 8.

(7) Nothing in clause 8 requires the provision of information or documents in respect of which WPP has a claim for legal professional privilege.

9. Disclosure of Undertaking

WPP acknowledges that the Commission may:

(1) make this Undertaking publicly available; and

(2) publish this Undertaking on its Public Section 87B Undertakings Register; and

(3) from time to time publicly refer to this Undertaking.

10. Obligation to procure

Where the performance of an obligation under this Undertaking requires a Related Body Corporate of WPP to take or refrain from taking some action, WPP will procure that Related Body Corporate to take or refrain from taking that action, as the case may be.

11. No Derogation

(1) This Undertaking does not prevent the Commission from taking enforcement action at any time whether during or after the period of this Undertaking in respect of any breach by WPP of any term of the Undertaking.

(2) Nothing in this Undertaking is intended to restrict the right of the Commission to take action under the Act for penalties or other remedies in the event that WPP does not fully implement and/or perform its obligations under this Undertaking or in any other event where the Commission decides to take action under the Act for penalties or other remedies.

12. Costs

WPP must pay all of its own costs incurred in relation to this Undertaking.

13. Notices

13.1 Giving Notices

(1) Any notice or communication to the Commission pursuant to this Undertaking must be sent to:

Name: Australian Competition and Consumer Commission
Address: 23 Marcus Clarke Street
CANBERRA ACT 2602
Fax number: (02) 6243 1212
Attention: General Manager - Mergers and Asset Sales Branch

(2) Any notice or communication to WPP pursuant to this Undertaking must be sent to:

Name: WPP Group plc
Address: 27 Farm Street,
London W1J 5RJ
United Kingdom
Fax number: +44 207 495 0484
Attention: Group Chief Counsel

13.2 Change of address or fax number

If WPP or the Commission gives the other three business day's notice of a change to its address or fax number, any notice or communication is only given to the relevant entity if it is delivered, posted or faxed to the most recently advised address or fax number.

Executed by WPP Group plc. in accordance with s 127 of the Corporations Act by or in the presence of

by:

Signature of Director

PAUL W.G. RICHARDSON

Name of Director (please print)

Date: 7 October 2008

Mario Capes

Signature of ~~Director~~/Secretary

MARIE CAPES

Name of ~~Director~~/Secretary (please print)

Accepted by the Australian Competition & Consumer Commission pursuant to section 87B of the *Trade Practices Act 1974*

Graeme Julian Samuel

Chairman

Date: 8 October 2008

Annexure A– EC Commitment

By hand and by fax: 00 32 2 296 4301
European Commission – Merger Task Force
DG Competition
Rue Joseph II / 70 Jozef-II straat
B-1000 BRUSSELS

Case COMP/M. 5232 – WPP / TNS

COMMITMENTS TO THE EUROPEAN COMMISSION

Pursuant to Article 6(2), of Council Regulation (EC) No. 139/2004 as amended (the **Merger Regulation**), WPP Group plc (**WPP**) hereby provides the following Commitments (the **TAM Commitments**) in order to enable the European Commission (the **Commission**) to declare the acquisition by WPP of Taylor Nelson Sofres plc (**TNS** and, together with WPP, the **Parties**) compatible with the common market and the EEA Agreement by its decision pursuant to Article 6(1)(b) of the Merger Regulation (the **Decision**).

The TAM Commitments shall take effect upon the date of adoption of the Decision.

This text shall be interpreted in the light of the Decision to the extent that the TAM Commitments are attached as conditions and obligations, in the general framework of Community law, in particular in the light of the Merger Regulation, and by reference to the Commission Notice on remedies acceptable under Council Regulation (EC) No. 139/2004 and under Commission Regulation (EC) No 802/2004.

PART I - INTERPRETATION

For the purpose of the TAM Commitments, the following terms shall have the following meaning:

Affiliated Undertakings: in relation to a person, undertakings under the Control of that person and/or by the ultimate parent undertakings of that person.

AGB Nielsen: AGB Nielsen Media Research BV

AGB Nielsen Business: the business operated by AGB Nielsen which provides TAM Services.

AGB Nielsen Key Personnel: all personnel necessary to maintain the viability and competitiveness of the AGB Nielsen Business as listed in the Schedule to Part II.

AGB Nielsen Shareholding: the shareholding consisting of WPP's fifty per cent. shareholdings in AGB Nielsen, a joint venture with Nielsen. and all subsidiary companies operated by AGB Nielsen. The present legal and functional structure of the AGB Nielsen Shareholding is described in the Schedule to Part II.

AGB Nielsen Shareholding Closing: the transfer of the legal title of the AGB Nielsen Shareholding to the Nielsen Company (**Nielsen**) or to an Affiliated Undertaking of Nielsen.

Control: shall be interpreted pursuant to Article 3 Merger Regulation and in the light of the Commission's Consolidated Jurisdictional Notice under Council Regulation (EC) No. 139/2004.

Divestiture Trustee: one or more natural or legal person(s), independent from the Parties, who is approved by the Commission and appointed by WPP and who has received from WPP the exclusive Trustee Mandate to sell the TNS Divestment Business to a Purchaser at no minimum price.

Effective Date: the date of adoption of the Decision.

First Divestiture Period: in relation to the divestment of the AGB Nielsen Shareholding described in Part II below the period of **[CONFIDENTIAL]** months after the Effective Date (the **AGB Nielsen First Divestiture Period**) and in relation to the divestment of the TNS Divestment Business described in Part III below the period of **[CONFIDENTIAL]** months after the TNS Closing (the **TNS First Divestiture Period**).

Hold Separate Manager: the person appointed by WPP to manage the day-to-day operation of the TNS Divestment Business under the supervision of the Monitoring Trustee.

Monitoring Trustee: one or more natural or legal person(s), independent from the Parties, who is approved by the Commission and appointed by WPP, and who has the duty to monitor WPP's compliance with the conditions and obligations attached to the Decision.

Purchaser: the entity approved by the Commission as acquirer of the TNS Divestment Business in accordance with the criteria set out in Section D of Part III.

TAM Services: any services to the extent they comprise or relate to the measurement, for the primary purpose of establishing audience size, and/or composition of audiences for television programming based on viewing activity (in any medium and through any device) by a panel or other sample selected to represent the viewing of the universe from which the panel is selected.

TNS Closing: the date on which the offer made by WPP under the UK Takeover Code for TNS becomes or is declared unconditional in all respects on the basis of the Offer Document dated 1 August 2008.

TNS Divestment Business: the EEA TAM Services business currently owned and operated by TNS as defined in the Schedule to Part III that WPP commits to divest.

TNS Divestment Business Closing: the transfer of the legal title of the TNS Divestment Business to the Purchaser.

TNS Divestment Business Key Personnel: all personnel necessary to maintain the viability and competitiveness of the TNS Divestment Business as defined in the Schedule to Part III.

TNS Trade Marks: the name "TNS" and any other Trade Mark that includes the name "TNS".

Trade Marks: trade marks, service marks, brand names, certification marks, collective marks, logos, symbols, corporate names, trade names and all other indicia of origin, and all associated goodwill.

Trustee(s): the Monitoring Trustee and the Divestiture Trustee.

Trustee Divestiture Period: the period of [**CONFIDENTIAL**] months after the end of the TNS First Divestiture Period.

WPP: WPP Group plc, a company incorporated under the laws of England and Wales, with registered number 05537577 and whose registered office is at Pennypot Industrial Estate, Hythe, Kent, CT21 6PE.

PART II

DIVESTMENT OF WPP'S SHAREHOLDING IN AGB NIELSEN

Section A. The AGB Nielsen Shareholding

Commitment to Divest

1. In order to restore effective competition, WPP commits to enter into an agreement to divest the AGB Nielsen Shareholding to Nielsen or an Affiliated Undertaking of Nielsen on or before the end of the First Divestiture Period.

2. WPP shall be deemed to have complied with the TAM Commitments if, by the end of the AGB Nielsen First Divestiture Period, WPP has entered into a final binding sale and purchase agreement with Nielsen, has communicated this to the Commission and if the AGB Nielsen Shareholding Closing takes place within a period not exceeding three months after the date of the agreement with Nielsen.

3. In order to maintain the structural effect of this Commitment to divest the AGB Nielsen Shareholding, WPP shall, for a period of 10 years after the Effective Date,

   (a) not acquire a direct or indirect shareholding in AGB Nielsen; and

   (b) not acquire direct or indirect influence over the whole or part of the AGB Nielsen Business in the EEA,

   unless the Commission has previously found that the structure of the market has changed to such an extent that the absence of influence over (a) and (b) above is no longer necessary to render the proposed concentration compatible with the common market. For the avoidance of doubt these TAM Commitments do not prevent WPP and AGB Nielsen (or any Affiliated Undertakings of either company) from entering into any agreement which relates to the operation of a business outside of the EEA.

Section B. Related commitments

Preservation of Viability, Marketability and Competitiveness

4. If WPP has not completed the divestiture of the AGB Nielsen Shareholding to Nielsen on or prior to the Effective Date, from the Effective Date until the AGB Nielsen Shareholding Closing, WPP shall preserve the economic viability, marketability and competitiveness of the AGB Nielsen Business, in accordance with good business practice, and shall minimise as far as possible any risk of loss of competitive potential of the AGB Nielsen Business. In particular WPP undertakes:

   (a) not to carry out any act upon its own authority that might have a significant adverse impact on the value, management or competitiveness of the AGB Nielsen Business or that might alter the nature and scope of activity, or the industrial or commercial strategy or the investment policy of the AGB Nielsen Business;

   (b) to make available sufficient resources for the development of the AGB Nielsen Business, on the basis and continuation of the existing business plans; and

(c) to take all reasonable steps, including appropriate incentive schemes (based on industry practice), to encourage all AGB Nielsen Key Personnel to remain with the AGB Nielsen Business.

Hold-separate obligations of Parties

5. WPP commits, from the Effective Date until the AGB Nielsen Shareholding Closing or the approval of the Purchaser by the Commission, to keep the AGB Nielsen Business separate from the businesses it is retaining and to ensure that the AGB Nielsen Key Personnel have no involvement in any business retained and vice versa. WPP shall also ensure after the Effective Date that the personnel which form part of the AGB Nielsen Business do not report to any individual outside the AGB Nielsen Business.

6. From the Effective Date until the AGB Nielsen Shareholding Closing or the approval of the Purchaser by the Commission, WPP shall assist the Monitoring Trustee in ensuring that the AGB Nielsen Business is managed as a distinct and saleable entity separate from the businesses WPP is retaining.

7. To ensure that the AGB Nielsen Business is held and managed as a separate entity the Monitoring Trustee shall exercise WPP's rights as shareholder in the AGB Nielsen Business (except for its rights for dividends that are due before the AGB Nielsen Shareholding Closing), with the aim of acting in the best interest of the business, determined on a stand alone basis, as an independent financial investor, and with a view to fulfilling WPP's obligations under the TAM Commitments. Furthermore, the Monitoring Trustee shall have the power to replace members of the supervisory board or non-executive directors of the board of directors, who have been appointed on behalf of WPP. Upon request of the Monitoring Trustee, WPP shall resign as member of the boards or shall cause such members of the boards to resign.

Ring-fencing

8. WPP shall implement all necessary measures to ensure that it does not after the Effective Date obtain any business secrets, know-how, commercial information, or any other information of a confidential or proprietary nature relating to the AGB Nielsen Business. In particular, the participation of the AGB Nielsen Business in a central information technology network shall be severed to the extent possible, without compromising the viability of the AGB Nielsen Business. WPP may obtain information relating to the AGB Nielsen Business which is reasonably necessary for the divestiture of the AGB Nielsen Shareholding or whose disclosure to WPP is required by law or regulatory requirement (e.g. accountancy).

Non-Solicitation Clause

9. WPP undertakes that it will not solicit, and will procure that its Affiliated Undertakings will not solicit the AGB Nielsen Key Personnel for a period of at least [**CONFIDENTIAL**] months after the AGB Nielsen Shareholding Closing.

PART II - SCHEDULE

AGB Nielsen Shareholding

(a) The divestiture of the AGB Nielsen Shareholding consists of the fifty per cent. shareholding held by Cavendish Square Holding B.V. (an Affiliated Undertaking of WPP) in AGB Nielsen Media Research BV (referred to throughout as the AGB Nielsen Shareholding) to Nielsen or an Affiliated Undertaking of Nielsen on or before the end of the First Divestiture Period.

(b) AGB Nielsen Media Research BV is a joint venture between WPP and Nielsen. Currently, WPP has an equal 50 per cent. share in AGB Nielsen Media Research BV with Nielsen and WPP also has the right to appoint an equal number of directors as Nielsen. By virtue of acquiring the AGB Nielsen Shareholding, Nielsen would acquire sole Control of AGB Nielsen Media Research BV.

(c) AGB Nielsen Media Research BV is the parent company of the AGB Nielsen group. The business of AGB Nielsen Media Research BV and its subsidiaries (referred to throughout as the AGB Nielsen Business) is the provision of TAM Services: TAM Services are those services which comprise or relate to the measurement, for the primary purpose of establishing audience size, and/or composition of audiences, for television programming based on viewing activity (in any medium and through any device) by a panel or other sample selected to represent the viewing of the universe from which the panel is selected. The AGB Nielsen Business currently provides TAM Services in the following countries in the EEA including through the following subsidiaries:

(i) Cyprus - AGB (Cyprus) Ltd

(ii) Greece - AGB Nielsen Media Research sa

(iii) Hungary - AGB Nielsen Mediakutato Kft.

(iv) Ireland - AGB Nielsen Media Research (Ireland) Ltd

(v) Italy - AGB Nielsen Media Research Holding SpA, AGB Nielsen Media Research Srl, AGB Nielsen Media Research TAM Srl and Media Instruments Italia Srl

(vi) Poland - AGB Nielsen Media Research Sp.z.o.o

(vii) Slovenia - AGB LAB d.o.o. and AGB Nielsen, Medijske Raziskave, d.o.o.

(viii) Sweden - AGB Nielsen Media Research (Sweden) AB

(ix) UK - AGB Nielsen Media Research Ltd

(d) The AGB Nielsen Key Personnel identified by WPP and to be agreed with Nielsen include:

(i) **[CONFIDENTIAL]**

PART III

DIVESTMENT OF TNS' TAM SERVICES BUSINESS IN THE EEA

Section A. The TNS Divestment Business

Commitment to Divest

10. Should WPP not fulfil the Commitment set out in Part II above within the AGB Nielsen First Divestment Period, in order to restore effective competition, WPP commits, as an alternative, to divest, or procure the divestiture of the TNS Divestment Business by the end of the TNS First Divestiture Period as a going concern to a purchaser and on terms of sale approved by the Commission in accordance with the procedure described in paragraph 23. To carry out the divestiture, WPP commits to find a purchaser and to enter into a final binding sale and purchase agreement for the sale of the TNS Divestment Business within the TNS First Divestiture Period. If WPP has not entered into such an agreement at the end of the TNS First Divestiture Period, WPP shall grant the Divestiture Trustee an exclusive mandate to sell the TNS Divestment Business within the Trustee Divestiture Period in accordance with the procedure described in paragraph 32.

11. WPP shall be deemed to have complied with these TAM Commitments if, by the end of the Trustee Divestiture Period, WPP has entered into a final binding sale and purchase agreement, if the Commission approves the Purchaser and the terms in accordance with the procedure described in paragraph 23 and if the closing of the sale of the TNS Divestment Business takes place within a period not exceeding three months after the approval of the Purchaser and the terms of sale by the Commission. [**CONFIDENTIAL**]

12. In order to maintain the structural effect of the TAM Commitments, WPP shall, for a period of 10 years after the Effective Date, not acquire direct or indirect influence over the whole or part of the TNS Divestment Business unless the Commission has previously found that the structure of the market has changed to such an extent that the absence of influence over the TNS Divestment Business is no longer necessary to render the proposed concentration compatible with the common market.

Structure and definition of the TNS Divestment Business

13. The TNS Divestment Business consists of the business currently operated by TNS and its Affiliated Undertakings which provides TAM Services in the EEA. The present legal and functional structure of the TNS Divestment Business as operated to date is described in the Schedule to Part III. The TNS Divestment Business, described in more detail in the Schedule to Part III, includes:

   (a) all tangible and intangible assets (including intellectual property rights), which contribute to the current operation or are necessary to ensure the viability and competitiveness of the TNS Divestment Business;

   (b) all licences, permits and authorisations issued by any governmental organisation for the benefit of the TNS Divestment Business;

   (c) all contracts, commitments and customer orders of the TNS Divestment Business; all customer, credit and other records of the TNS Divestment Business (items referred to under (a) to (c) hereinafter collectively referred to as **Assets**); and

   (d) the personnel (as described in the Schedule to Part III).

Section B. Related commitments

Preservation of Viability, Marketability and Competitiveness

14. From the TNS Closing until the TNS Divestment Business Closing, WPP shall preserve the economic viability, marketability and competitiveness of the TNS Divestment Business, in accordance with good business practice, and shall minimise as far as possible any risk of loss of competitive potential of the TNS Divestment Business. In particular WPP undertakes:

(a) not to carry out any act upon its own authority that might have a significant adverse impact on the value, management or competitiveness of the TNS Divestment Business or that might alter the nature and scope of activity, or the industrial or commercial strategy or the investment policy of the TNS Divestment Business;

(b) to make available sufficient resources for the development of the TNS Divestment Business, on the basis and continuation of the existing business plans; and

(c) to take all reasonable steps, including appropriate incentive schemes (based on industry practice), to encourage all TNS Divestment Business Key Personnel to remain with the TNS Divestment Business.

Hold-separate obligations of Parties

15. WPP commits, from the TNS Closing until the TNS Divestment Business Closing, to keep the TNS Divestment Business separate from the businesses WPP is retaining and to ensure that the TNS Divestment Business Key Personnel including the Hold Separate Manager – have no involvement in any business retained and vice versa. WPP shall also ensure after the TNS Closing that the personnel (as described in the Schedule to Part III) do not report to any individual outside the TNS Divestment Business.

16. From the TNS Closing until the TNS Divestment Business Closing, WPP shall assist the Monitoring Trustee in ensuring that the TNS Divestment Business is managed as a distinct and saleable entity separate from the businesses WPP is retaining. WPP shall appoint a Hold Separate Manager who shall be responsible for the management of the TNS Divestment Business and who shall be under the supervision of the Monitoring Trustee. The Hold Separate Manager shall manage the TNS Divestment Business independently and in the best interests of the TNS Divestment Business with a view to ensuring its continued economic viability, marketability and competitiveness and its independence from the businesses retained by WPP.

Ring-fencing

17. WPP shall implement all necessary measures to ensure that it does not after the Effective Date obtain any business secrets, know-how, commercial information, or any other information of a confidential or proprietary nature relating to the TNS Divestment Business. In particular, the participation of the TNS Divestment Business in a central information technology network shall be severed to the extent possible, without compromising the viability of the TNS Divestment Business. WPP may obtain information relating to the TNS Divestment Business which is reasonably necessary for the divestiture of the TNS Divestment Business or whose disclosure to WPP is required by law or regulatory requirement (e.g. accountancy).

Non-solicitation clause

18. WPP undertakes, subject to customary limitations, not to solicit, and to procure that its Affiliated Undertakings do not solicit, the TNS Divestment Business Key Personnel transferred with the TNS

Divestment Business for a period of **[CONFIDENTIAL]** months after the TNS Divestment Business Closing.

Due Diligence

19. In order to enable potential purchasers to carry out a reasonable due diligence of the TNS Divestment Business, WPP shall, subject to customary confidentiality assurances and dependent on the stage of the divestiture process:

    (a) provide to potential purchasers identified by WPP sufficient information as regards the TNS Divestment Business; and

    (b) provide to potential purchasers identified by WPP sufficient information relating to the personnel (as described in the Schedule to Part III) and allow them reasonable access to such personnel.

Reporting

20. WPP shall submit written reports in English on potential purchasers of the TNS Divestment Business and developments in the negotiations with such potential purchasers to the Commission and the Monitoring Trustee no later than 10 days after the end of every month following the Effective Date (or otherwise at the Commission's request).

21. WPP shall inform the Commission and the Monitoring Trustee on the preparation of the data room documentation and the due diligence procedure and shall submit a copy of an information memorandum to the Commission and the Monitoring Trustee before sending the memorandum out to potential purchasers.

Section C. The Purchaser

22. In order to ensure the immediate restoration of effective competition, the Purchaser of the TNS Divestment Business, in order to be approved by the Commission, must:

    (a) be independent of and unconnected to the Parties;

    (b) have the financial resources, proven expertise and incentive to maintain and develop the TNS Divestment Business as a viable and active competitive force in competition with the Parties and other competitors; and

    (c) neither be likely to create, in the light of the information available to the Commission, *prima facie* competition concerns nor give rise to a risk that the implementation of the TAM Commitments will be delayed, and must, in particular, reasonably be expected to obtain all necessary approvals from the relevant regulatory authorities for the acquisition of the TNS Divestment Business (the before-mentioned criteria for the purchaser hereafter the **Purchaser Requirements**).

23. The sale and purchase of the TNS Divestment Business shall be conditional on the Commission's approval. When WPP has reached an agreement with a purchaser, it shall submit a fully documented and reasoned proposal, including a copy of the final agreement(s), to the Commission and the Monitoring Trustee. WPP must be able to demonstrate to the Commission that the purchaser meets the Purchaser Requirements and that the TNS Divestment Business is being sold in a manner consistent with the TAM Commitments. For the approval, the Commission shall verify that the purchaser fulfils the Purchaser Requirements and that the TNS Divestment Business is being sold in a manner consistent with the TAM Commitments. The Commission may approve the sale of the

TNS Divestment Business without one or more assets of the TNS Divestment Business or parts of the personnel (as described in the Schedule to Part III), if this does not affect the viability and competitiveness of the TNS Divestment Business after the sale, taking account of the proposed purchaser.

PART III - SCHEDULE

TNS Divestment Business

(a) The TNS Divestment Business comprises the entire EEA business currently owned and operated by TNS which provides TAM Services in the EEA except those assets, technologies and personnel which are strictly necessary for the monitoring and utilisation of set top boxes (also known as return path data).[1] TAM Services are those services which comprise or relate to the measurement, for the primary purpose of establishing audience size, and/or composition of audiences, for television programming based on viewing activity (in any medium and through any device) by a panel or other sample selected to represent the viewing of the universe from which the panel is selected.

(b) Following paragraph 10 and 13 of these TAM Commitments, and subject to the exclusions set out in paragraph (c) of this Schedule below, the TNS Divestment Business includes:[2]

(i) the business carried on and services provided by TNS in any of Denmark, Estonia, Latvia, Lithuania, Slovakia, Poland, Spain, Norway, Belgium and the UK, to the extent that it comprises or relates to the measurement, for the primary purpose of establishing audience size, and/or composition of audiences for television and/or radio programming based on viewing or activity (in any medium and through any device) by a panel or other sample selected to represent the viewing of the universe from which the panel is selected. For the avoidance of doubt, the TNS Divestment Business includes (a) the business carried on and the services provided by TNS in the UK to the extent that it comprises or relates to the recruitment of TAM panel members and (b) those central functions located in the UK (or elsewhere) which manage the TNS Divestment Business in the EEA;

(ii) Meters Centre being the business carried on by TNS which researches, develops, builds and provides the meter technology for the provision of the services identified in (a) above including but not limited to the TNS People Meters and intellectual property rights together with employees who spend more than 50 per cent. of their time within the Meters Centre;

(iii) Infosys Activities being the business carried on by TNS globally, but developed, run and co-ordinated in Spain and the UK, which researches, develops, licenses, sells and provides support for the television audience measurement analysis software used by TNS;

(iv) Comtel being the operating system (incorporating relevant hardware, software and firmware) used (i) to poll the television metered panel households/individuals and process the data to the point where it an be exported to analysis tools to allow users the ability to analyse the data; (ii) to provide diagnostic analysis of the performance of the metering of individual panel homes; and (iii) used for panel management;

(v) any software owned by TNS that is used in Infosys Activities, the Meters Centre, Comtel or the business identified in (a) above generally;

(vi) the TNS Divestment Business Key Personnel including:

(A) the Sector Team being the employees of TNS who are wholly or mainly assigned, or whose principal purpose is, to provide services to the business described in (a) above but who are not allocated to a specific country;[3] and

[1] Given the unsolicited nature of its bid, WPP has not had access to TNS' proprietary information in preparing these TAM Commitments. Unless data was publicly available WPP has where possible estimated TNS' activities to the best of its ability.

[2] Given the unsolicited nature of its bid, WPP has not had access to detailed information on the Divestment Business. WPP will provide this information to the Monitoring Trustee as soon as practicable possible following the TNS Closing.

(B) the BARB Team being the employees of TNS who are wholly or mainly assigned, or whose principal purpose is, to provide services relating to the contract entered into between a subsidiary of TNS and BARB in the UK;

(vii) the personnel including all employees of TNS who spend more than 50 per cent. of their time working for the TNS Divestment Business;

(viii) all the intangible assets (including all Trade Marks and all intellectual property rights relating to TAM metering activities) currently used to operate TNS' TAM Services in the EEA;

(ix) the main licences, permits and authorisations currently used to operate TNS' TAM Services in the EEA;

(x) the contracts, agreements, leases (other than property leases), commitments and understandings which remain (in whole or in part) to be performed by or which are currently used to operate the business in (a) above;

(xi) the customer, credit and other records currently used to operate TNS' TAM Services in the EEA;

(xii) liabilities of the TNS Divestment Business;

(xiii) the arrangements for the supply for a transitional period of up to one year after the TNS Divestment Business Closing and on terms and conditions equivalent to those at present afforded to the TNS Divestment Business, of all current arrangements under which TNS or Affiliated Undertakings supply products or services to the TNS Divestment Business or lease office space, required to maintain the viability and competitiveness of the TNS Divestment Business, unless otherwise agreed with the Purchaser; and

(xiv) to the extent that any information required in relation to items (i) to (xii) listed above is currently not available to WPP, WPP shall submit to and agree with the Monitoring Trustee a full list of such information within one month of the TNS Closing.

(c) The TNS Divestment Business shall not include:

(i) Any Trade Marks used mainly in the TNS Divestment Business to the extent they include "TNS" or "Taylor Nelson Sofres";

(ii) those assets, technologies and personnel which are strictly necessary for the monitoring and utilisation of set top boxes (also known as return path data);

(iii) any Assets or Personnel in relation to:

(A) the measurement of internet activity;

(B) any customised media research (i.e. the provision of marketing research services on an exclusive basis to a client to meet the requirements of that particular client); and

(C) any advertising expenditure and media monitoring (i.e. the tracking and recording of media content e.g. tracking when and on what media a particular item of news or an entertainment program or advertisement was shown or aired).

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[3] The inclusion within the Sector Team of individual TNS employees will be decided by the Monitoring Trustee.

(d) [CONFIDENTIAL]

PART IV – COMMON PROVISIONS

Section A. Trustee

I. Appointment Procedure

24. WPP shall appoint a Monitoring Trustee to carry out the functions specified in these TAM Commitments for a Monitoring Trustee. If WPP has not entered into a binding sales and purchase agreement relating to the TNS Divestment Business one month before the end of the First Divestiture Period or if the Commission has rejected a purchaser of the TNS Divestment Business proposed by WPP at that time or thereafter, WPP shall appoint a Divestiture Trustee to carry out the functions specified in the TAM Commitments for a Divestiture Trustee. The appointment of the Divestiture Trustee shall take effect upon the commencement of the Extended Divestment Period.

25. The Trustee shall be independent of the Parties, possess the necessary qualifications to carry out its mandate, for example as an investment bank or consultant or auditor, and shall neither have nor become exposed to a conflict of interest. The Trustee shall be remunerated by the Parties in a way that does not impede the independent and effective fulfilment of its mandate. In particular, where the remuneration package of a Divestiture Trustee includes a success premium linked to the final sale value of the TNS Divestment Business, the fee shall also be linked to a divestiture within the Trustee Divestiture Period.

Proposal by WPP

26. No later than one week after the Effective Date, WPP shall submit a list of one or more persons whom WPP proposes to appoint as the Monitoring Trustee to the Commission for approval. No later than one month before the end of the First Divestiture Period, WPP shall submit a list of one or more persons whom WPP proposes to appoint as Divestiture Trustee to the Commission for approval. The proposal shall contain sufficient information for the Commission to verify that the proposed Trustee fulfils the requirements set out in paragraph 25 and shall include:

    (a) the full terms of the proposed mandate, which shall include all provisions necessary to enable the Trustee to fulfil its duties under these TAM Commitments;

    (b) the outline of a work plan which describes how the Trustee intends to carry out its assigned tasks; and

    (c) an indication whether the proposed Trustee is to act as both Monitoring Trustee and Divestiture Trustee or whether different trustees are proposed for the two functions.

Approval or rejection by the Commission

27. The Commission shall have the discretion to approve or reject the proposed Trustee(s) and to approve the proposed mandate subject to any modifications it deems necessary for the Trustee to fulfil its obligations. If only one name is approved, WPP shall appoint or cause to be appointed, the individual or institution concerned as Trustee, in accordance with the mandate approved by the Commission. If more than one name is approved, WPP shall be free to choose the Trustee to be appointed from among the names approved. The Trustee shall be appointed within one week of the Commission's approval, in accordance with the mandate approved by the Commission.

New proposal by WPP

28. If all the proposed Trustees are rejected, WPP shall submit the names of at least two more individuals or institutions within one week of being informed of the rejection, in accordance with the requirements and the procedure set out in paragraphs 24 and 27.

Trustee nominated by the Commission

29. If all further proposed Trustees are rejected by the Commission, the Commission shall nominate a Trustee, whom WPP shall appoint, or cause to be appointed, in accordance with a trustee mandate approved by the Commission.

II. **Functions of the Trustee**

30. The Trustee shall assume its specified duties in order to ensure compliance with the TAM Commitments. The Commission may, on its own initiative or at the request of the Trustee or WPP, give any orders or instructions to the Trustee in order to ensure compliance with the conditions and obligations attached to the Decision.

Duties and obligations of the Monitoring Trustee

31. The Monitoring Trustee shall:

(i) propose in its first report to the Commission a detailed work plan describing how it intends to monitor compliance with the obligations and conditions attached to the Decision.

(ii) oversee the on-going management of the AGB Nielsen Divestment Business and the TNS Divestment Business with a view to ensuring their continued economic viability, marketability and competitiveness and monitor compliance by WPP with the conditions and obligations attached to the Decision. To that end the Monitoring Trustee shall:

(a) monitor the preservation of the economic viability, marketability and competitiveness of the AGB Nielsen Business and the TNS Divestment Business, and the keeping separate of the AGB Nielsen Business and the TNS Divestment Business from the businesses retained by WPP, in accordance with paragraphs 4, 5, 14 and 15 of the TAM Commitments;

(b) supervise the management of the TNS Divestment Business as a distinct and saleable entity, in accordance with paragraph 16 of the TAM Commitments;

(c) (i) in consultation with WPP, determine all necessary measures to ensure that WPP does not after the effective date obtain any business secrets, knowhow, commercial information, or any other information of a confidential or proprietary nature relating to the TNS Divestment Business, and in particular strive for the severing of the TNS Divestment Business' participation in a central information technology network to the extent possible, without compromising the viability of the TNS Divestment Business; and

(ii) decide whether such information may be disclosed to WPP to allow WPP as the disclosure is reasonably necessary to carry out the divestiture of the TNS Divestment Business or as the disclosure is required by law;

(d) monitor the splitting of assets and the allocation of personnel (as described in the Schedule to Part III) between the TNS Divestment Business and WPP or its Affiliated Undertakings;

(iii) assume the other functions assigned to the Monitoring Trustee under the conditions and obligations attached to the Decision;

(iv) propose to WPP such measures as the Monitoring Trustee considers necessary to ensure WPP's compliance with the conditions and obligations attached to the Decision, in particular the maintenance of the full economic viability, marketability or competitiveness of the AGB Nielsen Business and the TNS Divestment Business, the holding separate of the TNS Divestment Business and the non-disclosure of competitively sensitive information;

(v) review and assess potential purchasers as well as the progress of the divestiture process and verify that, dependent on the stage of the divestiture process, (a) potential purchasers receive sufficient information relating to the TNS Divestment Business and the personnel (as described in the Schedule to Part III) in particular by reviewing, if available, the data room documentation, the information memorandum and the due diligence process, and (b) potential purchasers are granted reasonable access to such personnel;

(vi) provide to the Commission, sending WPP a non-confidential copy at the same time, a written report within 15 days after the end of every month. The report shall cover the operation and management of the TNS Divestment Business and the AGB Nielsen Business so that the Commission can assess whether the businesses are held in a manner consistent with the TAM Commitments and in relation to the TNS Divestment Business only the progress of the divestiture process as well as potential purchasers. In addition to these reports, the Monitoring Trustee shall promptly report in writing to the Commission, sending WPP a non-confidential copy at the same time, if it concludes on reasonable grounds that WPP is failing to comply with these TAM Commitments;

(vii) within one week after receipt of the documented proposal referred to in paragraph 23, submit to the Commission a reasoned opinion as to the suitability and independence of the proposed purchaser, the viability of the TNS Divestment Business after the proposed sale and as to whether the TNS Divestment Business is sold in a manner consistent with the conditions and obligations attached to the Decision; in particular if relevant, whether the sale of the TNS Divestment Business without one or more Assets or not all of the personnel (as described in the Schedule to Part III) will affect the viability of the TNS Divestment Business after the sale, taking account of the proposed purchaser.

Duties and obligations of the Divestiture Trustee

32. Within the Trustee Divestiture Period, the Divestiture Trustee shall sell at no minimum price the TNS Divestment Business to a purchaser, provided that the Commission has approved both the purchaser and the final binding sale and purchase agreement in accordance with the procedure laid down in paragraph 23. The Divestiture Trustee shall include in the sale and purchase agreement such terms and conditions as it considers appropriate for an expedient sale in the Trustee Divestiture Period. In particular, the Divestiture Trustee may include in the sale and purchase agreement such customary representations and warranties and indemnities as are reasonably required to effect the sale. The Divestiture Trustee shall protect the legitimate financial interests of WPP, subject to WPP's unconditional obligation to divest at no minimum price in the Trustee Divestiture Period.

33. In the Trustee Divestiture Period (or otherwise at the Commission's request), the Divestiture Trustee shall provide the Commission with a comprehensive monthly report written in English on the

progress of the divestiture process. Such reports shall be submitted within 15 days after the end of every month with a simultaneous copy to the Monitoring Trustee and a non-confidential copy to WPP.

III. Duties and obligations of WPP

34. WPP shall provide and shall cause its advisors to provide the Trustee with all such co-operation, assistance and information as the Trustee may reasonably require to perform its tasks. The Trustee shall have full and complete access to any of WPP's or the TNS Divestment Business' books, records, documents, management or other personnel, facilities, sites and technical information necessary for fulfilling its duties under the TAM Commitments and WPP and the TNS Divestment Business shall provide the Trustee upon request with copies of any document. WPP and the TNS Divestment Business shall make available to the Trustee one or more offices on their premises and shall be available for meetings in order to provide the Trustee with all information necessary for the performance of its tasks.

35. WPP shall provide the Monitoring Trustee with all managerial and administrative support that it may reasonably request on behalf of the management of the TNS Divestment Business. This shall include all administrative support functions relating to the TNS Divestment Business which are currently carried out at headquarters level. WPP shall provide and shall cause its advisors to provide the Monitoring Trustee, on request, with the information submitted to potential purchasers, in particular give the Monitoring Trustee access to the data room documentation and all other information granted to potential purchasers in the due diligence procedure. WPP shall inform the Monitoring Trustee on possible purchasers, submit a list of potential purchasers, and keep the Monitoring Trustee informed of all developments in the divestiture process.

36. WPP shall grant or procure Affiliated Undertakings to grant comprehensive powers of attorney, duly executed, to the Divestiture Trustee to effect the sale of the TNS Divestment Business, the TNS Divestment Business Closing and all actions and declarations which the Divestiture Trustee considers necessary or appropriate to achieve the sale and the TNS Divestment Business Closing, including the appointment of advisors to assist with the sale process. Upon request of the Divestiture Trustee, WPP shall cause the documents required for effecting the sale of the TNS Divestment Business and the TNS Divestment Business Closing to be duly executed.

37. WPP shall indemnify the Trustee and its employees and agents (each an **Indemnified Party**) and hold each Indemnified Party harmless against, and hereby agrees that an Indemnified Party shall have no liability to WPP for any liabilities arising out of the performance of the Trustee's duties under the TAM Commitments, except to the extent that such liabilities result from the wilful default, recklessness, negligence or bad faith of the Trustee, its employees, agents or advisors.

38. At the expense of WPP, the Trustee may appoint advisors (in particular for corporate finance or legal advice), subject to WPP's approval (this approval not to be unreasonably withheld or delayed) if the Trustee considers the appointment of such advisors necessary or appropriate for the performance of its duties and obligations under the Mandate, provided that any fees and other expenses incurred by the Trustee are reasonable. Should WPP refuse to approve the advisors proposed by the Trustee the Commission may approve the appointment of such advisors. Only the Trustee shall be entitled to issue instructions to the advisors. Paragraph 37 shall apply *mutatis mutandis*. In the Trustee Divestiture Period, the Divestiture Trustee may use advisors who served WPP during the Divestiture Period if the Divestiture Trustee considers this in the best interest of an expedient sale.

IV. Replacement, discharge and reappointment of the Trustee

39. If the Trustee ceases to perform its functions under the TAM Commitments or for any other good cause, including the exposure of the Trustee to a conflict of interest:

    (a) the Commission may, after hearing the Trustee, require WPP to replace the Trustee; or

    (b) WPP, with the prior approval of the Commission, may replace the Trustee.

40. If the Trustee is removed according to paragraph 39, the Trustee may be required to continue in its function until a new Trustee is in place to whom the Trustee has effected a full hand over of all relevant information. The new Trustee shall be appointed in accordance with the procedure referred to in paragraphs 24 to 29.

41. Beside the removal according to paragraph 39, the Trustee shall cease to act as Trustee only after the Commission has discharged it from its duties after all the TAM Commitments with which the Trustee has been entrusted have been implemented. However, the Commission may at any time require the reappointment of the Monitoring Trustee if it subsequently appears that the relevant remedies might not have been fully and properly implemented.

Section B. The Review Clause

42. The Commission may, where appropriate, in response to a request from WPP showing good cause and accompanied by a report from the Monitoring Trustee:

    (i) grant an extension of the time periods foreseen in the TAM Commitments, or

    (ii) waive, modify or substitute, in exceptional circumstances, one or more of the undertakings in these TAM Commitments.

    Where WPP seeks an extension of a time period, it shall submit a request to the Commission no later than one month before the expiry of that period, showing good cause. Only in exceptional circumstances shall WPP be entitled to request an extension within the last month of any period.

SIGNATORIES

....

duly authorised for and on behalf of
WPP Group plc